

25PR00052 Estate of Zoy Hann Jr

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-07-22

Motion: Petition for Final Distribution

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25pr00052>

Source SHA-256: 774810fbe2dd75dc955877391c1033c38519bdb4ac2a33e762b6c37a0614e040

Tentative Ruling: Estate of Zoy Hann Jr

Case Number

25PR00052

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 07/22/2026 - 09:30

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

High Reserve. Petitioner requests \$1,500 for a reserve amount, with no explanation as to why this amount is necessary. This amount creates a presumption that the estate is not in a condition to be closed, which must be overcome by evidence showing the reserve is justified and need not delay distribution of the estate. The following is from a well-respected treatise on this issue:

Although not required, it is advisable to include an estimate of closing expenses. Examples of estimated closing expenses include any estate taxes, interest, and penalties that will be paid after distribution; the cost of preparing final income tax returns for the estate; the cost of transferring securities to the distributees; the cost of reasonable storage, delivery, and shipping for distribution of tangible personal property to the distributees; and the cost of certifying and recording copies of the decree of distribution of real property. See Prob C §§11642, 11750, 11753–11754. Some courts require more detailed information about the nature and amount of the anticipated closing expenses. See, e.g., San Francisco Ct R 14.35(l)(3).

The personal representative may also wish to retain funds for any undisclosed or unknown liabilities, especially tax deficiencies later assessed against the decedent or the estate. Apart from the reserve for estate taxes, there are some drawbacks to setting the reserve aside specifically for possible future tax deficiencies. Such action indicates—especially if the reserve is a substantial one—misgivings about the validity of the estate's position. The reserve might also be considered a trust fund for payment of the taxes, thus extending the statutory period for assessment. See *U.S. v Rose* (3d Cir 1965) 346 F2d 985, 989.

In addition, if the personal representative requests that the court allow for a substantial reserve (or even a reserve of more than \$5,000), some courts will refuse to characterize the distribution as "final" and will require additional accounts (or waivers) before permitting distribution of any balance of the reserve. For example, in Contra Costa County, the court will not characterize the distribution as final if the personal representative requests more than a nominal reserve. If the entire estate will be distributed to a single beneficiary, such as a trust established during the decedent's lifetime, a reserve may not be necessary.

(Cal. Dec. Est. Pract. (CEB 2023), §31.66.)

Accordingly, it is recommended the Court either deny a reserve or deem this estate not to be in a condition to be closed.

New Proposed Order. A proposed order must be submitted with relief that matches that requested in the petition (Local Rule 1724(b), subd.(d)) and contains the proper language outlined in the Probate Code at Part 10 of Division 7, so the court can make the requisite findings and orders required to close out the estate and order final distribution.

The proposed order does not meet the requirements of Part 10, thus the use of Local Form SC-6029 is required.

If the documents curing these deficiencies are not processed by 8:00 a.m. on July 20, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 161 956 1423

Passcode: 137305

Judges

Judge Denise M. Hippach

SM Dept 1

312-M East Cook St. Building E

Santa Maria, CA 93454-5165

US